

NON-DISCLOSURE AGREEMENT

Service Agreement — Confidential

Between: **Acme Corp** ("Disclosing Party") and **TechPartner Inc** ("Receiving Party")

Effective Date: January 1, 2025 | Jurisdiction: State of California

This Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date listed above, by and between the parties identified herein. This Agreement governs the disclosure and use of confidential information in connection with a potential business relationship between the parties.

CLAUSE 1: PAYMENT TERMS

1.1 The Receiving Party agrees to pay the Disclosing Party a monthly retainer fee of **USD 5,000** for access to proprietary technical information and ongoing consultancy services.

1.2 All payments shall be made via wire transfer within **30 days** of invoice receipt. Late payments shall incur a penalty of 1.5% per month on the outstanding balance.

1.3 In the event of a dispute regarding invoiced amounts, the Receiving Party must notify the Disclosing Party in writing within 10 business days of receiving the invoice. Undisputed amounts remain due and payable on the original due date.

CLAUSE 2: TERMINATION

2.1 Either party may terminate this Agreement upon **30 days written notice** to the other party. Termination shall not relieve either party of obligations incurred prior to the termination date.

2.2 This Agreement may be terminated immediately by the Disclosing Party if the Receiving Party materially breaches any provision, including unauthorized disclosure of confidential information, and fails to cure such breach within 7 days of written notice.

2.3 Upon termination, the Receiving Party shall promptly return or destroy all confidential materials and certify in writing that no copies, digital or physical, have been retained.

CLAUSE 3: LIABILITY AND INDEMNIFICATION

3.1 Neither party shall be liable for indirect, incidental, consequential, or punitive damages arising from this Agreement, even if advised of the possibility of such damages.

3.2 The total cumulative liability of either party under this Agreement shall not exceed the total fees paid by the Receiving Party in the **12 months** preceding the event giving rise to the claim.

3.3 The Receiving Party agrees to indemnify, defend, and hold harmless the Disclosing Party from any third-party claims, damages, or expenses arising out of the Receiving Party's misuse of confidential information or breach of this Agreement.

CLAUSE 4: CONFIDENTIALITY OBLIGATIONS

4.1 The Receiving Party agrees to hold all Confidential Information in strict confidence and to not disclose it to any third party without prior written consent from the Disclosing Party.

4.2 "Confidential Information" means any data or information, oral or written, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure, including but not limited to: trade secrets, source code, financial data, customer lists, and business strategies.

4.3 Confidentiality obligations shall survive termination of this Agreement for a period of **five (5) years**. The Receiving Party shall limit access to Confidential Information to employees with a strict need-to-know basis and ensure those employees are bound by equivalent confidentiality obligations.

CLAUSE 5: GOVERNING LAW AND DISPUTE RESOLUTION

5.1 This Agreement shall be governed by and construed in accordance with the laws of the **State of California**, without regard to its conflict of law provisions.

5.2 Any disputes arising out of or in connection with this Agreement shall first be subject to good-faith negotiation between senior representatives of both parties for a period of 30 days before escalation.

5.3 If negotiation fails, disputes shall be resolved through binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules. The arbitration shall be conducted in San Francisco, California, and the arbitrator's decision shall be final and enforceable in any court of competent jurisdiction.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Acme Corp

Signature: _____

Name: _____

Title: _____

Date: _____

TechPartner Inc

Signature: _____

Name: _____

Title: _____

Date: _____